

Opinion of the Court

limits to Congress “vest[ing] review of the decisions of Article III courts in officials of the Executive Branch.” *Plaut*, 514 U.S., at 218 (citing *Hayburn’s Case*, 2 Dall. 409 (1792), and, e.g., *Chicago & Southern Air Lines, Inc. v. Waterman S. S. Corp.*, 333 U.S. 103, 114 (1948)). Congress, we have also held, may not “retroactively comman[d] the federal courts to reopen final judgments.” *Plaut*, 514 U.S., at 219.

A

Citing *United States v. Klein*, 13 Wall. 128 (1872), Bank Markazi urges a further limitation. Congress treads impermissibly on judicial turf, the Bank maintains, when it “prescribe[s] rules of decision to the Judicial Department . . . in [pending] cases.” *Id.*, at 146. According to the Bank, §8772 fits that description. Brief for Petitioner 19, 43. *Klein* has been called “a deeply puzzling decision,” Meltzer, Congress, Courts, and Constitutional Remedies, 86 Geo. L.J. 2537, 2538 (1998).¹⁸ More recent decisions, however, have made it clear that *Klein* does not inhibit Congress from “amend[ing] applicable law.” *Robertson v. Seattle Audubon Soc.*, 503 U.S. 429, 441 (1992); see *id.*, at 437–438; *Plaut*, 514 U.S., at 218 (*Klein*’s “prohibition does not take hold when Congress ‘amend[s] applicable law.’” (quoting *Robertson*, 503 U.S., at 441)). Section 8772, we hold, did just that.

would create no new substantive law; it would instead direct the court how pre-existing law applies to particular circumstances. See *infra* this page and 227–232. THE CHIEF JUSTICE challenges this distinction, *post*, at 247, but it is solidly grounded in our precedent. See *Robertson v. Seattle Audubon Soc.*, 503 U.S. 429, 439 (1992) (A statute is invalid if it “fail[s] to supply new law, but direct[s] results under old law.”), discussed in R. Fallon, J. Manning, D. Meltzer, & D. Shapiro, *Hart and Wechsler’s The Federal Courts and the Federal System* 324 (7th ed. 2015).

¹⁸ See also *id.*, at 323 (calling *Klein* a “delphic opinion”); Tyler, *The Story of Klein: The Scope of Congress’s Authority To Shape the Jurisdiction of the Federal Courts*, in *Federal Courts Stories* 87 (V. Jackson & J. Resnik eds. 2010) (Tyler) (calling *Klein* “baffl[ing]”).